

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT

BAHAWALPUR BENCH, BAHAWALPUR.

(JUDICIAL DEPARTMENT)

Writ Petition No.2313 of 2025/BWP.

Muhammad Naeem. Versus Judge Family Court, etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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28.04.2025	Rana Ehtisham Shaukat, Advocate for the petitioner. Respondent No.4 (Sajid Hanif Bhatti, Advocate) in person. Rao Nasir Mahmood, Advocate for respondent No.2.
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Through this Constitutional Petition, the petitioner has impugned the vires of order dated 08.03.2025 whereby his objection petition was dismissed by the learned Executing Court.

2. Relevant facts forming background of the proceedings in hand are that respondent No.2 instituted a suit for recovery of dowry articles against the petitioner which was decreed in her favour. For the satisfaction of the decree, she filed an execution petition. Respondent No.3 stood surety of the petitioner and learned Executing court for the satisfaction of the decree put his property on the open auction and appointed respondent No.4 as Court Auctioneer. Respondent No.4 failed to submit report with regard to the auction proceedings. Petitioner filed an objection petition with the contention that suit of the respondent No.2 was decreed to the extent of Rs.10,00,000/- and he has deposited Rs.76,000/- before Hon’ble High Court and thereafter paid an amount of Rs.1,30,000/- and during the auction proceedings he paid an

amount of Rs.3,00,000/- (Rs.150,000/- on two counts) on 30.05.2023 and 20.09.2023 to the Court Auctioneer through his surety. He claimed that he has paid total amount of Rs.506,000/- out of total decretal amount of Rs.10,00,000/- but the Court while issuing warrant of arrest failed to consider those amounts. Learned Executing Court dismissed his application vide order dated 08.03.2025 and appointed fresh Court Auctioneer. Feeling aggrieved, the petitioner impugned said order through instant Constitutional Petition.

3. Heard. Record perused.

4. During the execution proceedings initiated by respondent No.2 (decree-holder) against the petitioner, respondent No.4 (*Sajid Hanif Bhatti, Advocate*) was appointed as Court Auctioneer for auction of the property of Muhammad Shafique Sajid (surety of the petitioner), who received amounts of Rs.1,50,000/- each on two occasions and issued receipts dated 30.05.2023 and 20.09.2023 in favour of the surety by putting his signatures as well as affixing his stamp. Respondent No.4/Court Auctioneer did not submit his report in the Court despite repeated directions of the Court, hence, the Court appointed Muhammad Tahir Ramay, Advocate as Court Auctioneer.

5. Grievance of the petitioner, voiced through this petition, is that the respondent No.4 who was earlier appointed as Court auctioneer has received an amount of Rs.3,00,000/- from the surety of the petitioner/judgment debtor and has also issued receipts in this regard but the

Executing Court, without addressing this point has appointed fresh Court Auctioneer.

6. This Court issued pre-admission notice in the name of respondent No.2 (decree holder) and respondent No.4/Court Auctioneer who appeared before the Court on last date of hearing i.e. 18.04.2024 and sought some time to arrange an amount of Rs.3,00,000/- by acknowledging the receipts issued by him.

7. Today, respondent No.4/Advocate appeared in the Court and paid Rs.50,000/- in cash and also issued three cheques of his account (*Cheque No.95292078 worth Rs.50,000/- dated 15.05.2025, Cheque No.95292080 dated 28.05.2025 worth Rs.1,00,000/- and cheque No.95292081 dated 28.06.2025 worth Rs.1,00,000/- of United Bank Limited, Main Bazar Chishtian Branch, Bahawalnagar*) for the remaining amount. Said cheques and cash amount of Rs.50,000/- have been handed over to the learned counsel for the petitioner. Respondent No.4 is bound to get encashed said cheques on the relevant dates. In case of default/dishonor of cheques on the given dates the petitioner will be at liberty to initiate legal proceedings against him and get aid of the Court for recovery of said amounts. Learned Executing Court will also take all possible measures for recovery of remaining amount.

8. In view of the above, learned counsel for the petitioner does not press this petition having borne fruits. Hence, the same is **disposed of** accordingly.

9. However, before parting with this judgment, it has been observed that the petitioner has suffered due to non-professional behavior and misconduct of respondent No.4 who is an Advocate. The Courts while appointing an Advocate as *Court Auctioneer*, *Local Commissioner*, *Receiver*, and *Liquidator*, among others, to aid the Court in discharge of its judicial functions should not act blindly and arbitrarily. Such appointees represent the Court while discharging their functions, hence, these appointments are expected to be made with circumspection, ensuring that only the individuals with requisite competence, integrity, and professionalism are selected. The present case highlights the grave consequences of appointing an advocate without exercising care & caution, as he received an amount of Rs.300,000/- from the surety of the judgment debtor illegally.

10. The Court, while exercising its discretionary powers to appoint Advocates in such quasi-judicial roles, is under an implicit duty to take into account following aspects:

1. **Competency and Expertise:** The advocate must possess sufficient legal knowledge and familiarity with the procedural aspects of the specific task (e.g., auction proceedings, asset valuation, report writing) in the light of High Court Rules & Orders.
2. **Professional Integrity:** The individual's past conduct, reputation in the legal community, and any pending disciplinary matters should be evaluated.
3. **Accountability and Transparency:** Appointees must be capable of acting independently, impartially, and with full accountability, given that they are entrusted with parties' rights and valuable assets.

11. Copy of this order be sent to the learned Executing Court for information. Registrar of this Court is also directed to circulate copy of this order amongst all the District & Sessions Judges in Punjab for information and strict adherence to the observations made hereinabove.

12. A copy of this order also be sent to the Chairman, Punjab Bar Council, with the direction to look into the matter and take appropriate action against respondent No.4 Muhammad Sajid Hanif Bhatti, Advocate, Tehsil Chishtian, District Bahawalnagar, for his non-professional behavior and misconduct.

(AHMAD NADEEM ARSHAD)
JUDGE

APPROVED FOR REPORTING.

JUDGE

M. ARSALAN*